

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Lauren Kerstein	Team: Team # 2	CCRB Case #: 201306471	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☒ O.L.	☒ Injury
Incident Date(s) Wednesday, 06/19/2013 8:10 PM	Location of Incident: Intersection of Herkimer Street and Buffalo Avenue/81st Precinct Stationhouse.	Precinct: 81	18 Mo. SOL 12/19/2014	EO SOL 12/19/2014	
Date/Time CV Reported Fri, 07/05/2013 3:25 PM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Thu, 07/18/2013 1:32 PM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. SGT Forrest Hirsch	01210	941905	081 PCT
2. POM Ross Garner	21542	949007	081 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Milton Davis	07130	932147	081 PCT
2. POM Jonathan Thomas	09859	948146	081 PCT
3. POF Malerie Treuman	04360	939603	081 PCT

Officer(s)	Allegation	Investigator Recommendation
A.SGT Forrest Hirsch	Discourtesy: At the intersection of Herkimer Street and Buffalo Avenue, Sgt. Forrest Hirsch spoke discourteously to § 87(2)(b)	
B.POM Ross Garner	Force: At the intersection of Herkimer Street and Buffalo Avenue, PO Ross Garner used physical force against § 87(2)(b)	
C.SGT Forrest Hirsch	Force: At the intersection of Herkimer Street and Buffalo Avenue, Sgt. Forrest Hirsch used physical force against § 87(2)(b)	
D.POM Ross Garner	Discourtesy: At the intersection of Herkimer Street and Buffalo Avenue, PO Ross Garner spoke discourteously to § 87(2)(b)	
E.SGT Forrest Hirsch	Abuse: At the 81st Precinct Stationhouse, Sgt. Forrest Hirsch did not obtain medical treatment for § 87(2)(b)	
F.SGT Forrest Hirsch	Abuse: At the 81st Precinct Stationhouse, Sgt. Forrest Hirsch authorized the strip-search of § 87(2)(b)	
G.SGT Forrest Hirsch	Off. Language: At the 81st Precinct Stationhouse, Sgt. Forrest Hirsch made remarks to § 87(2)(b) and individuals based upon race.	

Case Summary

On July 5, 2013, § 87(2)(b) filed this complaint by phone with the Internal Affairs Bureau, generating log # 13-2525 (encl. C1-C2). This case was received at the CCRB on July 18, 2013. On June 19, 2013, officers arrested § 87(2)(b) near the intersection of Herkimer Street and Buffalo Avenue, in Brooklyn. The following allegations resulted:

- **Allegation A: Discourtesy – At the intersection of Herkimer Street and Buffalo Avenue, Sgt. Forrest Hirsch spoke discourteously to § 87(2)(b)**
- **Allegation D: Discourtesy – At the intersection of Herkimer Street and Buffalo Avenue, PO Ross Garner spoke discourteously to § 87(2)(b)**
- **Allegation E: Abuse of Authority – At the 81st Precinct Stationhouse, Sgt. Forrest Hirsch did not obtain medical treatment for § 87(2)(b)**
- **Allegation G: Offensive Language – At the 81st Precinct Stationhouse, Sgt. Forrest Hirsch made remarks to § 87(2)(b) and individuals based upon race.**
§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)
- **Allegation B: Force – At the intersection of Herkimer Street and Buffalo Avenue, PO Ross Garner used physical force against § 87(2)(b)**
- **Allegation C: Force – At the intersection of Herkimer Street and Buffalo Avenue, Sgt. Forrest Hirsch used physical force against § 87(2)(b)**
§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)
- **Allegation F: Abuse of Authority – At the 81st Precinct Stationhouse, Sgt. Forrest Hirsch authorized the strip-search of § 87(2)(b)**
§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)

Results of Investigation

Civilian Statement

Complainant/Victim: § 87(2)(b)

- § 87(2)(b) *a black man with black hair and brown eyes, stands 5'9" tall and weighs 160 pounds. He was § 87(2)(b) at the time of the incident.*

Arrest Photo: § 87(2)(b)'s arrest photo shows no visible injuries (encl. E1).

CCRB Statement

§ 87(2)(b) called IAB by phone on July 5, 2013 to make the complaint (encl. C5). § 87(2)(b) provided a phone statement on August 2, 2013 (encl. C6), and an in-person statement at the CCRB on August 27, 2013 (encl. D1-D3). The details of both statements are summarized below.

On June 19, 2013, at approximately 3:27 p.m., § 87(2)(b) who was wearing two pairs of pants, had just purchased a sandwich and was walking with his bike on the sidewalk by himself on Buffalo Avenue. While walking he heard screams coming from the intersection of Herkimer Street and Buffalo

Avenue in Brooklyn. § 87(2)(b) turned and saw PO1, identified via investigation as PO Malerie Treuman, described as a white, slim, woman in her mid-30s and in uniform, with blonde hair and who stood 5'4"-5'5" tall, punch a female identified by § 87(2)(b) as § 87(2)(b) in the stomach. Sgt.1, identified via investigation as Sgt. Forrest Hirsch described as a white man, with black hair, a round face, who stood 5'4"-5'6" tall, stood next to PO Treuman.

§ 87(2)(b) walked towards the opposite side of the street where his four or five friends, one being his friend § 87(2)(b) happened to be filming the interaction between PO Treuman, Sgt. Hirsch and § 87(2)(b). § 87(2)(b)'s friends were yelling at Sgt. Hirsch to stop hitting § 87(2)(b). Sgt. Hirsch turned towards and said, "Mind your fucking business" and "Shut the fuck up before I lock your ass up," to § 87(2)(b) and his friends. PO2, identified via investigation as PO Ross Garner, described as a white, husky, uniformed male, about 6'0" tall, with blonde hair who looked 22-23 years old, leaned against an unmarked black Crown Victoria police vehicle.

§ 87(2)(b) began to walk away from the scene and turned onto Buffalo Avenue to Herkimer Street while saying that what Sgt. Hirsch was doing to § 87(2)(b) was wrong. PO Garner then entered his vehicle and pulled up next to § 87(2)(b). PO Garner exited his vehicle and asked § 87(2)(b) if he had anything in his pockets. PO Garner then grabbed § 87(2)(b)'s right forearm and pushed it behind § 87(2)(b)'s back and handcuffed him.

PO Garner asked § 87(2)(b) to sit on the sidewalk and he complied. § 87(2)(b) complied. Sgt. Hirsch, PO Treuman and PO3, identified via investigation as PO Jonathon Thomas who § 87(2)(b) described as a dark complexioned black man, who looked between 27-32 years old, who stood 6'1"-6'2" tall with a cesear haircut and, PO4, identified as PO Milton Davis, described as a medium complexioned, black male, who looked 29-31 years old, stood 5'7" tall and had a small afro haircut approached § 87(2)(b) and PO Garner.

Without any warning, while § 87(2)(b) was seated on the ground, PO Garner smacked § 87(2)(b) in the face and then pushed § 87(2)(b) backwards for filming him. PO Garner then put his knee on the right side of § 87(2)(b)'s neck and pushed § 87(2)(b)'s face into the sidewalk while telling him to put his face on the ground. § 87(2)(b) responded by asking them what they were doing. Sgt. Hirsch kicked § 87(2)(b) in the mouth, and pulled his arm back towards his neck. § 87(2)(b) heard his arm snap and felt it dislocate. As a result of the kick to his mouth, his fake front teeth broke and he injured his back.

§ 87(2)(b) cried and asked why PO Garner was disrespecting him. In response, PO Garner said, "Look at him crying like a little bitch," and punched him in the face again. Sgt. Hirsch said "Fuck your family." § 87(2)(b) then asked Sgt. Hirsch if he could go to the hospital for his injuries and Sgt. Hirsch responded, "You're not going to no fucking hospital."

Sgt. Hirsch and PO Garner transported § 87(2)(b) and § 87(2)(b) back to the 81st Precinct Stationhouse in the same vehicle. Sgt. Hirsch turned around in the passenger seat and said, "Shut the fuck up. I would not even use your dick to fuck her skanky ass," referring to § 87(2)(b). Sgt. Hirsch also said "Now I have to go get a tetanus shot because her fucking ass got AIDS," and called § 87(2)(b) a "dumb black bitch."

§ 87(2)(b) said that there was cocaine wrapped in a clear, plastic material, the size of a fist on the floor of the police vehicle in front of him. At first § 87(2)(b) thought that it was § 87(2)(b) who was caught carrying marijuana, but § 87(2)(b) said that it was actually the officers trying to entrap him.

§ 87(2)(b) was then escorted into the precinct and PO Garner, Sgt. Hirsch, PO Thomas and PO Davis escorted § 87(2)(b) into a room and took off his handcuffs which showed that his wrists were bleeding. An officer who § 87(2)(b) could not describe then came in and dabbed his wrists with a wet cloth and gave him a bandage.

Sgt. Hirsch told him to take his shoestrings off, his belt off, to turn his pants pockets inside out and then to pull his pants down. § 87(2)(b) asked why they wanted him to pull his pants down and began to jerk his clothes stating, "I don't have anything." Sgt. Hirsch responded that he thought § 87(2)(b) was hiding something. § 87(2)(b) took his pants off and Sgt. Hirsch asked him to take his boxers off. Sgt.

Hirsch put on plastic gloves and tried to perform a cavity search. § 87(2)(b) in response clenched his buttocks and said that he was not going to let Sgt. Hirsch penetrate him. Sgt. Hirsch then picked § 87(2)(b) up in the air and told the other officers to hold § 87(2)(b). § 87(2)(b) said that he was holding his underwear up while yelling at the officers to get off of him. Sgt. Hirsch then put his finger inside § 87(2)(b)'s anus. No contraband was recovered. Officers then made him walk past the holding cell where § 87(2)(b) and two other women were, naked.

At some point Sgt. Hirsch stated, "Shut up you stupid nigger." When asked to clarify who the officer said this to, § 87(2)(b) said that it was directed at everyone who was black in the precinct.

§ 87(2)(b) after the incident, § 87(2)(b) went to § 87(2)(b) for injuries to his back, neck, jaw and mouth and a dislocated his shoulder. § 87(2)(b) actually went to § 87(2)(b) on § 87(2)(b). Then § 87(2)(b) went to his personal doctor located at the intersection of § 87(2)(b) and § 87(2)(b) in Brooklyn, who gave him antibiotics for his mouth and jaw. § 87(2)(b) said that he plans on going to a chiropractor for his neck and back. § 87(2)(b) did not want the case involving § 87(2)(b) investigated.

Attempts to Contact Civilians

Between August 29, 2013 and September 19, 2013, four calls were placed to § 87(2)(b) to try and obtain his private doctor's contact information so a subpoena for his medical records and obtain video footage that his friend § 87(2)(b) had of the incident. § 87(2)(b) provided § 87(2)(b)'s phone number but did not know any other contact information for him. Contact was established with § 87(2)(b) on September 3, 2013, and he said that he was trying to transfer the video footage onto a disk and would have it completed shortly and he was asked to come to the CCRB on September 12, 2013, but he never showed up. Two more calls were placed with no response.

During his interview, § 87(2)(b) made allegations on behalf of § 87(2)(b) § 87(2)(g). A Lexis Nexis search was conducted on August 29, 2013. The search yielded one address, two phone numbers and five e-mail addresses (encl. P1-P12). Between September 3, 2013 and September 16, 2013, three calls were placed to each phone number and two letters were sent to her address. On September 10, 2013 and September 16, 2013, e-mails were sent to each of her five e-mail addresses (encl. R1-R12). Another number was recovered from § 87(2)(b)'s voice message and on September 16, 2013 one call was placed and a message was left with no response. A NYC Department of Correction search was conducted on September 12, 2013 which concluded that § 87(2)(b) was not incarcerated.

NYPD Statements:

Subject officer: SGT. FORREST HIRSCH

- Sgt. Hirsch is a 5'9" tall, 180 pound, white man, with brown hair and hazel eyes. He was § 87(2)(b) years old at the time of this incident.
- On June 19, 2013, Sgt. Hirsch worked from 2:00 p.m. to 10:57 p.m. as Street Narcotics Enforcement Unit (SNEU) supervisor. Sgt. Hirsch worked in uniform with PO Ross Garner and PO Malerie Treuman in an unmarked black Sedan #§ 87(2)(b).

Memo book

8:05 p.m., OP observed defendant in a hand to hand exchange of white object. 8:13 p.m., PO Treuman observed F/B smoking lit marijuana cigar on Buffalo and Herkimer. Upon approach defendant dropped and crushed cigar with her foot. While trying to handcuff defendant did pull, scratch, punch, kick officers in attempt to escape causing scratches to Sgt. Hirsch and laceration to PO Treuman. While putting defendant in RMP she spit in my face, mouth, and eyes. S/A zip-lock recovered from defendant's bag.

A/O Thomas. At the same time, PO Garner had a male stopped who was fighting with him up the block. Force used to restrain both individuals. Exposure number for myself (encl. G1-G3).

CCRB Statement

Sgt. Hirsch provided a statement to the CCRB on January 16, 2014 (encl. H1-H3).

On June 19, 2013, at approximately 7:40 p.m., Sgt. Hirsch was part of the apprehension team for a SNEU set in a drug prone location within the 81st Precinct. The observation post saw § 87(2)(b) exchange U.S. currency for a small white object on the corner. The observation post provided the buyer's clothing description, height, weight, and direction of flight. While approaching the location on Buffalo Avenue, twenty feet before reaching Herkimer Street, PO Treuman observed § 87(2)(b) smoking a marijuana cigar on the street. PO Treuman and Sgt. Hirsch exited the vehicle in order to place § 87(2)(b) under arrest.

PO Garner who was the operator, continued to drive to the corner of Herkimer Street and Buffalo Avenue. Sgt. Hirsch turned to make sure PO Garner was okay, and saw § 87(2)(b) sitting on the ground. § 87(2)(b) began to fight with PO Treuman and Sgt. Hirsch, but they were eventually able to place her in handcuffs. PO Treuman and Sgt. Hirsch brought § 87(2)(b) to where PO Garner and § 87(2)(b) were. PO Treuman escorted § 87(2)(b) back to the car and Sgt. Hirsch went over to § 87(2)(b) and PO Garner in order to arrest § 87(2)(b). While Sgt. Hirsch tried to get § 87(2)(b)'s left hand behind his back, PO Garner said that he observed § 87(2)(b) throw a crack pipe. Sgt. Hirsch or PO Garner told § 87(2)(b) to put his hands behind his back. § 87(2)(b) who was still seated on the ground, began to punch and kick PO Garner and Sgt. Hirsch.

Sgt. Hirsch continued to try and grab § 87(2)(b)'s left hand and was trying to roll him onto his side so that § 87(2)(b) only had one arm free. PO Garner tried to grab § 87(2)(b)'s right arm. Sgt. Hirsch went on the ground, placed his hand on § 87(2)(b)'s left shoulder and arm, then rolled § 87(2)(b) over so that § 87(2)(b) was face down on the street. Sgt. Hirsch was then able to successfully handcuff § 87(2)(b)'s left hand.

Sgt. Hirsch never hit § 87(2)(b) in the face and did not observe any other officer do so. Sgt. Hirsch never kicked § 87(2)(b) in the mouth and did not see any other officer do so. Sgt. Hirsch never observed any injuries on § 87(2)(b) and did not remember § 87(2)(b) complaining about broken teeth. § 87(2)(b) never requested medical attention and Sgt. Hirsch never stated "You are not going to no fucking hospital" and did not hear any other officer state this.

While the two arrests were taking place there were two civilians standing nearby who were shouting unknown statements but did not interfere. Sgt. Hirsch never said or witnessed any officer state, "Mind your fucking business" or "Shut the fuck up before I lock your ass up" to either of the people and never pushed either of them.

After § 87(2)(b) was handcuffed Sgt. Hirsch thought § 87(2)(b) was agitated because of his tone of voice and body language. § 87(2)(b) was throwing his shoulders around and acting combative by pulling away from PO Garner and himself and refused to stay still. Sgt. Hirsch could not remember what § 87(2)(b) was saying. Sgt. Hirsch did not state or witness any officer state, "Look at him crying like a little bitch," or "Fuck your family."

Sgt. Hirsch and PO Garner searched § 87(2)(b) at the scene. They patted him down for weapons and searched his pockets. The crack pipe § 87(2)(b) threw was recovered at the scene, but no crack/cocaine was recovered.

Sgt. Hirsch and PO Treuman transported § 87(2)(b) and § 87(2)(b) to the 81st Precinct. PO Treuman was driving and Sgt. Hirsch was in the passenger seat. § 87(2)(b) was seated behind the driver's seat, § 87(2)(b) behind the passenger seat. While being transported to the precinct, § 87(2)(b) kept lifting his butt off the seat and moving his hands into his waistband and butt area. That made Sgt. Hirsch think that he was trying to conceal or destroy evidence. Sgt. Hirsch told § 87(2)(b) to stop

moving and stop fidgeting. Sgt. Hirsch never stated, “I would not even use your dick to fuck her skanky ass,” and never heard another officer state this.

At the 81st Precinct Stationhouse, Sgt. Hirsch took § 87(2)(b)'s pedigree information at the desk and told PO Garner to conduct a strip-search of § 87(2)(b) in the private bathroom. Sgt. Hirsch authorized the strip-search because the drugs that the observation team observed § 87(2)(b) buy were not recovered on scene, and because while § 87(2)(b) was in the police vehicle his behavior made it seem like he was trying to destroy or conceal evidence. Sgt. Hirsch was not present for the strip-search because he was in the front cell area. There was no contraband was recovered from the strip-search. Sgt. Hirsch never stated or witnessed any officer state, “Shut up you stupid niggers.”

Subject Officer: PO Ross Garner

- *PO Ross Garner was § 87(2)(b) old at the time of this incident. He is a 6'1" tall, white male, who weighs 210 pounds and has brown hair and brown eyes.*
- *PO Garner worked from 2 p.m. on June 19, 2013 to 3:45 a.m. on June 20, 2013 and was assigned to the catch team in the Street Narcotics Enforcement Unit (SNEU) with Sgt. Forrest Hirsch and PO Malerie Treuman. PO Garner was working in uniform in unmarked car #§ 87(2)(b) black, non-caged car.*

Memo book

At 7:40 p.m., PO Ross Garner was conducting a SNEU operation in the vicinity of Buffalo Avenue and Atlantic Avenue in Brooklyn. 8:13 p.m., one male stopped at Herkimer Street and Buffalo Avenue.

§ 87(2)(b) § 87(2)(b) male did reach into his pocket and throw glass pipe containing residue in attempt to destroy evidence. Male did then struggle with officer and refused to be handcuffed. 8:25 p.m., at 81st Precinct Stationhouse attempting to lodge/search defendant § 87(2)(b) defendant did fight with officer and refuse to be searched. Defendant was handcuffed so officer could thoroughly and safely search defendant (encl. F1-F2).

CCRB Testimony

PO Garner provided a statement to the CCRB on December 12, 2013 (encl. F4-F6).

§ 87(2)(g). PO Garner approached § 87(2)(b) identified himself as police and asked § 87(2)(b) to sit on the ground because he did not want to affect an arrest until he had another officer with him. § 87(2)(b) complied.

A crowd had formed and PO Garner asked one individual to step back. PO Garner denied stating, “Mind your fucking business” or “Shut the fuck up before I lock your ass up” to anyone in the crowd and never pushed any of them. PO Garner denied hearing any other officer use profanity or push anyone in the crowd.

PO Garner looked down the block at Sgt. Hirsch and PO Treuman; they had § 87(2)(b) in handcuffs but he saw her trying to kick and spit at the officers. PO Garner then turned back to § 87(2)(b) and saw him try and take a glass pipe out of his pocket and throw it.

PO Garner told § 87(2)(b) to turn over and put his hands behind his back and § 87(2)(b) refused and put his hands under his body. § 87(2)(b) told PO Garner that he was not going to put his hands behind his back and refused to turn over. PO Garner had to request the Observation Post to come and assist him. At some point Sgt. Hirsch and PO Treuman came over and assisted him. PO Garner tried to get § 87(2)(b)'s hands behind his back by grabbing § 87(2)(b)'s hands from underneath him. Once the Observation Post came, identified via investigation as PO Thomas and PO Davis, PO Garner was able to place § 87(2)(b) in handcuffs. PO Garner had assistance as he effected the arrest however he did not remember who assisted him. After § 87(2)(b) was handcuffed he yelled and cursed at the officers. The crack/cocaine was never recovered from Herkimer Street and Buffalo Avenue.

PO Garner never hit § 87(2)(b) in the face or kicked him in the teeth and did not observe any other officer do so. PO Garner never observed any injuries on § 87(2)(b). § 87(2)(b) never requested medical attention and PO Garner never stated “You are not going to no fucking hospital” and did not hear any other officer state this. PO Garner did not state, “Look at him crying like a little bitch,” “Fuck your family” and did not hear any other officer state these phrases.

PO Garner rode back to the 81st Precinct with Sgt. Hirsch and PO Treuman and § 87(2)(b). § 87(2)(b) was not in the vehicle with them. PO Garner did not recall who transported § 87(2)(b). At the 81st Precinct Stationhouse, PO Garner tried to lodge § 87(2)(b) in the cells. PO Garner took the handcuffs off § 87(2)(b) and § 87(2)(b) became very irate. § 87(2)(b) said, “You want to search me? Go ahead and search me,” and began to forcefully dig into his pockets and underwear and was throwing his arms into the air. PO Garner explained that a crack rock is very small and he started to see pieces of paper flying into the air from § 87(2)(b)'s pockets, which made PO Garner think that he may be trying to conceal or destroy evidence. PO Garner told § 87(2)(b) to stop doing that and to relax two to three times, § 87(2)(b) did not stop.

So § 87(2)(b) would not destroy evidence and so that he did not try and swallow any evidence which would be a huge health risk to § 87(2)(b). PO Garner grabbed both of § 87(2)(b)'s hands. § 87(2)(b) then tensed up to the point where PO Garner believed that if he let go of § 87(2)(b)'s hands that he would try and take a swing at him and made PO Garner feel endangered. PO Garner was able to handcuff § 87(2)(b) and then conducted a safe search. PO Garner did not remember the specifics of the search or whether or not he conducted a strip-search of § 87(2)(b). No contraband was recovered.

PO Garner never stated and never heard Sgt. Hirsch state, “Shut up you stupid niggers.”

Witness Officer: PO Jonathon Thomas

- PO Jonathon Thomas was § 87(2)(b) old at the time of this incident. He is a 5’8” tall, 155-pounds black male with black hair and brown eyes.
- PO Jonathon Thomas worked from 2 p.m. on June 19, 2013 to 5:45 a.m. on June 20, 2013 and was assigned as the observation post for the Street Narcotics Enforcement Unit (SNEU). PO Thomas was in plainclothes and working in an unmarked non-department vehicle. PO Thomas was working with PO Milton Davis, PO Malerie Treuman, PO Ross Garner and Sgt. Forrest Hirsch who was the supervisor of the team for the day.

Complaint Report and Arrest Report

§ 87(2)(a) 160.50

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

Property and Evidence Tracking System

One pipe with crack/cocaine residue was vouchered to § 87(2)(b) (encl. L2).

Memo book

PO Thomas had detailed entries pertaining to § 87(2)(b) and § 87(2)(b) arrest (encl. I1-I4).

CCRB Statement

PO Thomas provided a statement to the CCRB on October 23, 2013 (encl. I5-I7).

§ 87(2)(g)

While PO Thomas was conducting observation in his personal car with PO Davis, he observed § 87(2)(b).

in a hand to hand exchange from across the street. § 87(2)(b) exchanged United States currency for a twist of crack/cocaine. PO Thomas called out his description and direction of flight to the catch car team.

PO Thomas received a distress call over the radio that told him to go to the location. To avoid blowing his cover, PO Thomas parked his car at a tactical location and responded to the scene two to three minutes later. PO Thomas observed § 87(2)(b) ignoring several verbal commands from Sgt. Hirsch to put his hands behind his back and to stop resisting. PO Thomas also said that he told § 87(2)(b) to stop resisting several times but § 87(2)(b) did not listen because he was trying to smash his crack pipe. § 87(2)(b) then began to push Sgt. Hirsch and refused to put his hands behind his back. When Sgt. Hirsch had § 87(2)(b)'s hands behind his back, § 87(2)(b) went limp which resulted in him falling to the sidewalk. PO Thomas estimated that it took Sgt. Hirsch three minutes from the time he arrived on the scene to handcuff § 87(2)(b). PO Thomas then helped Sgt. Hirsch pick § 87(2)(b) up off the ground. § 87(2)(b) is known to PO Thomas due to his arrest history. PO Thomas rode § 87(2)(b)'s bike back to the 81 Precinct Stationhouse saying it was the least he could do. PO Thomas never heard Sgt. Hirsch or PO Garner use any expletives. PO Thomas did not observe any officer punch or kick § 87(2)(b). PO Thomas did not observe any injuries on § 87(2)(b) never heard him request medical attention or hear an officer refuse to provide him medical attention. PO Thomas did not know if § 87(2)(b) was strip-searched.

Witness Officer: PO MALERIE TREUMAN

- PO Malerie Treuman was § 87(2)(b) old at the time of this incident. She is a 5'5" tall, 125 pound, white female with brown hair and brown eyes.
- On June 19, 2013, PO Treuman worked from 2:00 p.m. to 11:35 p.m. as part of the apprehension team in a SNEU set with PO Garner and Sgt. Hirsch. PO Treuman was dressed in uniform and assigned to unmarked, black, Sedan #§ 87(2)(b).

Memo book

8:13 p.m., observed female black smoking lit marijuana cigar corner of Buffalo and Herkimer. Upon approach, defendant dropped and crushed marijuana cigar with foot on cement. While attempting to cuff, defendant began punching and kicking, causing laceration to right middle finger. Defendant also spit into Sgt. Hirsch's mouth and eyes. 10-92C § 87(2)(a) 160.50 SILA (1) zip lock of marijuana recovered from defendant's bag. A/O Thomas. 11:35 p.m., 10-83 in regards to arrest processing (encl. K1-K4).

CCRB Statement

PO Treuman provided a statement to the CCRB on January 16, 2014 (encl. K6-K8).

§ 87(2)(g)
After § 87(2)(b) was handcuffed, Sgt. Hirsch and PO Treuman walked § 87(2)(b) back to where PO Garner was with § 87(2)(b) and where the police vehicle was parked. When they came to the police vehicle, § 87(2)(b) was already handcuffed. PO Garner handcuffed § 87(2)(b) without any assistance.

PO Treuman did not observe any of § 87(2)(b)'s arrest because it happened across the street and a few doors down which was approximately 100 feet away with PO Garner.

PO Treuman did not see an officer hit § 87(2)(b) in the face, push his face into the ground, kick him in the mouth. PO Truman did not hear PO Garner or Sgt. Hirsch state any expletives. PO Treuman never observed any injuries on § 87(2)(b) or heard him request medical attention.

PO Treuman, PO Garner and Sgt. Hirsch transported § 87(2)(b) and § 87(2)(b) back to the 81st Precinct in their vehicle. PO Garner was the operator and Sgt. Hirsch was in the passenger seat. PO Treuman was seated behind PO Garner at the window, § 87(2)(b) was next to her and § 87(2)(b) was next to § 87(2)(b). § 87(2)(b) was quiet in the car but both him and § 87(2)(b) were fidgeting and moving around a lot in their seat. PO Treuman could not see if § 87(2)(b) was reaching anywhere or rose from his seat because she was seated all the way to the left. PO Treuman told them both to stop fidgeting.

PO Treuman may have told Sgt. Hirsch that § 87(2)(b) was fidgeting in the car. PO Treuman was not present for § 87(2)(b)'s strip-search and did not know that § 87(2)(b) was strip-searched.

Witness Officer: PO MILTON DAVIS

- PO Davis was § 87(2)(b) old at the time of this incident. PO Davis is a 5'7" tall, 185 pound, bald, black male, with brown eyes.
- On June 19, 2013, PO Davis worked from 2 p.m. to 11:35 p.m. on an 81st Precinct SNEU team as part of the observation post with PO Jonathon Thomas. PO Davis was in plainclothes and in a personal vehicle.

Memo book

At 7:40 p.m., PO Thomas and PO Davis were in the vicinity of Buffalo Avenue and Atlantic Avenue. 8:10 p.m., two arrests at Buffalo Avenue and Herkimer Street. Both male black, female black; § 87(2)(b) Belligerent perpetrators. 9 p.m., returned to precinct for arrest processing (encl. J1-J3).

CCRB Statement

PO Davis provided a statement to the CCRB on December 16, 2013 (encl. K1-K2).

§ 87(2)(g)

When PO Davis arrived, PO Garner was trying to arrest § 87(2)(b) who was seated on the ground, but refused to put his arms behind his back and was flailing his arms. PO Garner was able to successfully handcuff § 87(2)(b) despite his resistance. While PO Garner tried to arrest § 87(2)(b) Sgt. Hirsch and PO Treuman were about two car lengths away with § 87(2)(b) PO Davis never heard PO Garner or Sgt. Hirsch use profanity. PO Davis never saw PO Garner or Sgt. Hirsch hit § 87(2)(b) in the face, push his face into the ground, and kick him in the mouth.

PO Davis parked PO Thomas' car back at the 81st Precinct Stationhouse. When PO Davis observed § 87(2)(b) at the 81st Precinct Stationhouse, he was still being belligerent by screaming and yelling while in front of the desk. PO Davis was not present for § 87(2)(b)'s strip-search and was not aware that § 87(2)(b) was strip-searched.

Medical Records

On § 87(2)(b) weeks before his CCRB interview, § 87(2)(b) went to § 87(2)(b) because he was hit by a car while riding his bicycle. § 87(2)(b)'s complaints include lower back pain, left leg pain, neck pain, left knee pain, and a bump on his head when he fell onto the pavement. The provider impression states that § 87(2)(b) has no medical problem. He was prescribed Ibuprofen and discharged.

NYPD Documents

81st Precinct Command Log

§ 87(2)(b) was brought into the precinct at 8:25 p.m. His physical condition is listed as apparently normal. A strip-search was conducted at 8:30 p.m. with the authority of Sgt. Hirsch with negative results (encl. L1).

Arrest for Incident and Disposition

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

§ 87(2)(b)

Status of Civil Proceedings

- § 87(2)(b) has not filed a Notice of Claim with the City of New York as of November 1, 2013 with regard to the incident (encl. N1).

§ 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

Civilian CCRB History

- § 87(2)(b) filed CCRB case § 87(2)(b)

Subject Officers CCRB History

- PO Garner has been a member of the service for 3 years and there are no substantiated CCRB allegations against him (encl. B1).
- Sgt. Hirsch has been a member of the service for 7 years and there are 2 substantiated CCRB allegations against him. In case #201016064 and #201016064, the Board recommended instructions for a stop, and a frisk (encl. B2-B3).

Conclusion

Allegations Not Pleaded

During his interview, § 87(2)(b) alleged that PO Treuman punched § 87(2)(b) and alleged that Sgt. Hirsch called § 87(2)(b) a “dumb black bitch,” and said, “Now I have to go get a tetanus shot because her fucking ass got AIDS,” before spitting in her face. § 87(2)(b) also alleged that Sgt. Hirsch pushed his friend for filming the interaction. § 87(2)(g)

§ 87(2)(b)

§ 87(2)(b)

Identification of Subject Officers

Sgt. Hirsch and PO Garner acknowledged their interaction with § 87(2)(b)

Investigative Findings and Recommendations

- **Allegation A: Discourtesy – At the intersection of Herkimer Street and Buffalo Avenue, Sgt. Forrest Hirsch spoke discourteously to § 87(2)(b)**
- **Allegation D: Discourtesy – At the intersection of Herkimer Street and Buffalo Avenue, PO Ross Garner spoke discourteously to § 87(2)(b)**
- **Allegation E: Abuse of Authority – At the 81st Precinct Stationhouse, Sgt. Forrest Hirsch did not obtain medical treatment for § 87(2)(b)**
- **Allegation G: Offensive Language – At the 81st Precinct Stationhouse, Sgt. Forrest Hirsch made remarks to § 87(2)(b) and individuals based upon race.**
§ 87(2)(b) alleged that while he and his friends were watching § 87(2)(b) get arrested, his friends were yelling for PO Treuman and Sgt. Hirsch to stop and Sgt. Hirsch said, “Mind your fucking business,” and “Shut the fuck up, before I lock your ass up.” After being handcuffed, § 87(2)(b) alleged that PO Garner called him a “little bitch,” and Sgt. Hirsch said, “Fuck your family.” Furthermore, § 87(2)(b) also alleged that when he asked to go to the hospital, Sgt. Hirsch responded, “You’re not going to no fucking hospital.” At the 81st Precinct Stationhouse, § 87(2)(b) alleged that

Sgt. Hirsch used the word, “nigger.” PO Garner and Sgt. Hirsch denied ever saying such things and PO Treuman, PO Thomas and PO Davis denied ever hearing any of these things said.

§ 87(2)(g)

- **Allegation B: Force – At the intersection of Herkimer Street and Buffalo Avenue, PO Ross Garner used physical force against § 87(2)(b)**
Allegation C: Force – At the intersection of Herkimer Street and Buffalo Avenue, Sgt. Forrest Hirsch used physical force against § 87(2)(b)

It is undisputed that physical force was used against § 87(2)(b) to affect his arrest. § 87(2)(g) § 87(2)(b) alleged that unprovoked, PO Garner approached him and placed him under arrest. After he was handcuffed, § 87(2)(b) alleged that suddenly, and without cause, PO Garner smacked him in the face, put his knee on his neck and pushed his face into the street. He alleged that Sgt. Hirsch then kicked him in the mouth and dislocated his shoulder by pulling his arm back towards his neck.

§ 87(2)(g)

Patrol Guide section 203-09(1) states that an officer must use the minimum amount of force necessary in their interactions with civilians (encl. A5-A7).

§ 87(2)(g)

- **Allegation F: Abuse of Authority – At the 81st Precinct Stationhouse, Sgt. Forrest Hirsch authorized the strip-search of § 87(2)(b)**

It is undisputed that § 87(2)(b) was strip-searched at the 81st Precinct Stationhouse. § 87(2)(b) acknowledged it, and alleged that officers planted cocaine in the vehicle he was transported in. The 81st Precinct command log that Sgt. Hirsch authorized the strip-search of § 87(2)(b).

A strip-search can only be conducted when based upon a reasonable suspicion that a defendant is concealing evidence underneath their clothing People v. Anderson, N.Y. (2013)(encl. A1-A4).

§ 87(2)(g)

§ 87(2)(g) [Redacted]
[Redacted]
§ 87(2)(g) [Redacted]
[Redacted]
[Redacted]

Team: ____2____

Investigator: _____
Signature Print Date

Supervisor: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date